

		<u>Case Management Conference</u> The Case Management Conference is continued to October 15, 2026, at 1:30 p.m. in this department. Plaintiff to give notice.
5	Lam v. Bui	Defendants Hong Bui and Yen Hai Bui's Motion for Judgment on the Pleadings is DENIED. The Court finds Defendants have not presented any evidence they met and conferred prior to filing the Motion. However, the Court exercises its discretion to consider the Motion on its merits. Defendants' Requests for Judicial Notice are GRANTED as to the final judgment, complaint, and register of actions, in case no. 2023-01303811. (See Evid. Code, § 452, subd. (d) [the Court may take judicial notice of "records of ... any court of this state"].) <u>Standard for Motion for Judgment on the Pleadings</u> A defendant may move for judgment on either the entire complaint, or as to any of the causes of action, on the ground that "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subds. (c)(1)(B)(ii), (c)(2)(A).) " 'A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.' [Citation.] As with a demurrer, '[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.' [Citations.]" (<i>Eckler v. Neutrogena</i> (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d).) "Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." (<i>Sykora v. State Dept. of State Hospitals</i> (2014) 225 Cal.App.4th 1530, 1534; <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063.) A trial court's determination of a motion for judgment on the pleadings accepts as true the pleading's factual allegations, and it gives them a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516; see <i>Stella v. Asset Management Consultants, Inc.</i> (2017) 8 Cal.App.5th 181, 190-191 [while allegations of a complaint must be accepted as true for purposes of a demurrer, the facts appearing in exhibits attached to the complaint will also be accepted as true, and, if contrary to the allegations in the pleading, will be given precedence].) Although the trial court must accept as true all material facts properly pleaded, it "does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed. [Citation.]" (<i>Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.</i> (2006) 138 Cal.App.4th 1215, 1219.) <u>The Present Claims Are Not Barred by Claim or Issue Preclusion</u>

Defendants contend the Complaint is barred by the doctrines of claim preclusion / res judicata, as well as issue preclusion / collateral estoppel.

Defendants are mistaken.

"Claim preclusion applies to ' ' matters which were raised or could have been raised, on matters litigated or litigatable' " in the prior action.

[Citation.] " " "The doctrine ... rests upon the ground that the party to be affected, or some other with whom [the party] is in privity, has litigated, or had an opportunity to litigate the same matter in a former action in a court of competent jurisdiction, and should not be permitted to litigate it again to the harassment and vexation of his opponent." ' ' "

[Citation.] " " "If the matter was within the scope of the action, related to the subject-matter and relevant to the issues, so that it could have been raised, the judgment is conclusive on it despite the fact that it was not in fact expressly pleaded or otherwise urged." ' ' ' [Citation.]" (Howitson v. Evans Hotels, LLC (2022) 81 Cal.App.5th 475, 486.)

" " Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations.]' [Citation.]" (Egelston v. State Personnel Bd. (2025) 112 Cal.App.5th 1050, 1055, citing to DKN Holdings LLC v. Faerber (2015) 61 Cal.4th 813, 824; see Howitson v. Evans Hotels, LLC (2022) 81 Cal.App.5th 475, 488 [claim preclusion does not apply where the parties in the two lawsuits are not the same].)

"Collateral estoppel, or issue preclusion, 'prevents relitigation of previously decided issues' and applies '(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. [Citations.]' [Citation.]" (Egelston v. State Personnel Board (2025) 112 Cal.App.5th 1050, 1055.)

Res judicata does not bar Plaintiffs' Complaint, as the causes of action between the quiet title action and the present Complaint are not the same. The quiet title action involved allegations that Defendant Cindy Bui encroached and took a portion of Plaintiff Ben Lam's property. While the allegations in the present Complaint allude to the property dispute underlying the quiet title action, the gravamen of the present Complaint is Defendants' alleged harassment of Plaintiffs. Thus, the allegations in the present Complaint were not matters that were raised, or could have been raised, in the quiet title action. The present causes of action were not matters "within the scope of the [quiet title] action, related to the subject-matter and relevant to the issues" in the quiet title action. (Howitson v. Evans Hotels, LLC (2022) 81 Cal.App.5th 475, 486.)

Second, the quiet title action only involved Ben Lam as the plaintiff and Cindy Bui as the defendant. (Exhibit B to Request for Judicial Notice.) Here, Lam Nguyen is a new plaintiff, and Huong Bui is a defendant. While the Court acknowledges the possibility, if not the likelihood, that Lam Nguyen and Huong Bui are in privity with Ben Lam and Cindy Bui, respectively, this cannot be resolved by way of a Motion for Judgment on the Pleadings.

		Third, while there was a final judgment in the quiet title action, that judgment was only as to the sole cause of action for quiet title. There was no judgment as to Plaintiffs' present claims of harassment. Similarly, Plaintiffs' claims are not barred by collateral estoppel, as there has been no final adjudication of an identical issue that was actually litigated and necessarily decided in the quiet title action. In their Motion, Defendants make the argument that "California law does not recognize a standalone civil cause of action for 'harassment.'" However, Plaintiffs' Complaint does not include a cause of action for "harassment." Finally, Defendants contend that the Complaint fails to state facts sufficient to support a trespass claim, as "[t]he Complaint contains conclusory allegations and fails to plead specific facts establishing unauthorized entry or interference with Plaintiff's exclusive possessory rights." " 'Trespass is an unlawful interference with possession of property.' [Citation.] The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. [Citation.]" (<i>Ralphs Grocery Co. v. Victory Consultants, Inc.</i> (2017) 17 Cal.App.5th 245, 261-262.) The Court rejects Defendants' contentions, as Plaintiffs have alleged sufficient facts to support their trespass cause of action. Specifically, Plaintiffs allege they own or control the property located at 12531 Hazel. (Complaint, ¶¶ 1, 7.) They allege Defendants intentionally, recklessly, or negligently entered onto Plaintiffs' property, even though they were not given permission to do so. (Complaint, ¶ 11.) Defendants then caused Plaintiffs' harm by, among other things, cutting down Plaintiffs' fruit trees. (Complaint, ¶ 11, 41.) For purposes of a Motion for Judgment on the Pleadings, the foregoing allegations must be treated as being true. (<i>Hopp v. City of Los Angeles</i> (2010) 183 Cal.App.4th 713, 717.) More importantly, these allegations state facts sufficient to constitute a cause of action for trespass. Plaintiffs are ordered to provide notice of the Court's ruling.
6	Cheu v. RED SUN, LLC,	Defendants Teh-Ming Cheu, Cheng-Oh Cheu, and Diann-Ching Wang's Motion for Appointment of Appraisers to Value Plaintiff's Interest in Red Sun, LLC for Subsequent Buyout Order, to Stay this Case and for Order Setting Bond Amount is DENIED. Plaintiff Teh-Show Cheu's evidentiary objections to the Declaration of Andrew S. Sussman are OVERRULED as to paragraph 4 and Exhibit 2, but they are SUSTAINED as to paragraphs 7 and 8.

Defendants' evidentiary objections to the Declaration of Thomas P. Aplin are SUSTAINED as to paragraph 2, lines 9:9-9:12, 9:14-9:15, and 9:16-9:17, as well as paragraph 5, line 9. The remainder of Defendants' evidentiary objections are OVERRULED.

The Motion is an Untimely, and Improper, Motion for Reconsideration

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a); *Dickson v. Mann* (2024) 103 Cal.App.5th 935, 950-951.)

" '[S]ection 1008 is designed to conserve the court's resources by constraining litigants who would attempt to bring the same motion over and over.' [Citation.]" (*Schachter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 735; see *UAS Management, Inc. v. Mater Misericordiae Hospital* (2008) 169 Cal.App.4th 357, 367 ["The overriding purpose of Code of Civil Procedure section 1008 is to prevent duplicative motions"].)

"[A] party is prohibited from making, and the trial court from granting, a motion for reconsideration unless the requirements of... [section] 1008 are satisfied." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 211; see *Boschetti v. Pacific Bay Investments Inc.* (2019) 32 Cal.App.5th 1059, 1070 [section 1008 "prohibits a party from making a renewed motion not based on new facts or law"].)

"Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]" (*Cox v. Bonni* (2018) 30 Cal.App.5th 287, 312; *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.)

" 'The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it' at the original hearing." (*Dickson v. Mann* (2024) 103 Cal.App.5th 935, 951, citing to *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.)

In seeking reconsideration, the motion fails when it is nothing more than an attempt to relitigate the merits of the original motion that the party is now seeking reconsideration of. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500; see *J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1171 ["the name of a

motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration”].)

This is now Defendants’ fourth attempt at seeking relief pursuant to section 17707.03, subdivision (c) of the Corporations Code. In fact, in denying Defendants’ third Motion for Stay, this Court found it had denied similar motions on two prior occasions, yet the third Motion to Stay still did not present any new or different facts, circumstances, or law.

The Court acknowledges there are a few notable differences between the first three Motions for Stay and this Motion, but none of these differences amount to new or different facts, circumstances, or law.

First, Defendants now seek the appointment of three appraisers to value Plaintiff’s interest in Red Sun, pursuant to section 17707.03, subdivision (c)(3). (See Sussman Reply Declaration, ¶¶ 5, 10.) They did not make such a request in their prior three Motions for Stay.

Second, and related to the first point, Defendants present a different appraisal than what they presented in their second and third Motions to Stay. (Sussman Motion Declaration, ¶ 4; Exhibit 4 to Sussman Motion Declaration; Sussman Reply Declaration, ¶¶ 3-4.)

Third, Defendants previously requested a bond of \$7,500, but they now request the bond not exceed \$10,000. (But see Sussman Reply Declaration, ¶ 8 [Defendants willing to post any bond or security the Court determines is appropriate].)

On page 7, footnote 3 of their Motion, Defendants contend that they “have not previously sought the relief requested in this motion based on the valuation of Plaintiff’s LLC interest.”

In their Reply, Defendants’ counsel states “the present motion is based on those later-developed facts: the September 30, 2025 appraisal, the December 10, 2025 written offer, Plaintiff’s written rejection, and the parties’ resulting inability to agree on fair market value. Defendants did not previously present this same record to the Court.” (Sussman Reply Declaration, ¶ 4.)

Superficially, Defendants have presented new evidence that they did not present in their three prior Motions for Stay, and they do seek relief that they did not previously request.

However, looking below the surface, the foregoing does not constitute new or different facts, circumstances or law. This is because Defendants could have, and should have, obtained that appraisal, and made that offer, which Plaintiff was likely to reject, at the outset. They also could have, and should have, requested the appointment of appraisers with their initial Motion for Stay.

The purpose of all four motions are the same, namely, to stay the dissolution proceeding so that Defendants can attempt to acquire Plaintiff’s membership interests in Red Sun. (See Sussman Reply

		Declaration, ¶ 11 [admitting “Defendants’ request for a stay is directed to the dissolution and winding-up proceeding while the statutory buyout procedure proceeds”].) Finally, the Court denied Defendants’ third Motion for Stay on May 11, 2023, yet Defendants did not file the present Motion until January 20, 2026. This is untimely, as they were required to seek reconsideration within 10 days after service of the written notice of entry of order. (Cal. Code Civ. Proc., § 1008, subd. (a).) The Court has already denied Defendants’ Motion for Stay on three separate occasions. It now does so for the fourth time. Plaintiff is ordered to give notice of the Court’s ruling.
7	Clinkenbeard v. Mesa	Off calendar.
8	Alcantar v. Lopez	Defendant Bianca Karina Lopez moves to compel further responses from Plaintiff Susan Alcantar to RFAs (Set Two) and Form Interrogatories (Set Two). For the following reasons, the motions are DENIED without prejudice. “Civil discovery is intended to operate with a minimum of judicial intervention. [I]t is a central precept of the Civil Discovery Act . . . that discovery be essentially self-executing[.] [Citations].” (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402.) To that end, motions to compel further responses must attach a meet and confer declaration “showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.310(b), 2033.290(b)(1).) Code of Civil Procedure section 2016.040 was recently amended to require that that reasonable and good faith attempt be “either in person, by telephone or by videoconference.” (Code Civ. Proc., § 2016.040.) There must be a serious effort at negotiation and informal resolution. (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1294.) “Argument is not the same as informal negotiation.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1437 [finding that “debate over the appropriateness of an objection” did not “constitute an earnest attempt to resolve impasses in discovery].) “[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1294.) Here, Defendant does not submit a meet and confer declaration showing any meet and confer effort in person, by telephone, or by videoconference—as required by Code of Civil Procedure section 2016.040. The court expects the parties will be able to resolve completely or to significantly narrow the scope of these discovery disputes. To that end, the parties are ordered to further meet and confer to resolve informally their discovery disputes. Prior to the further meet and confer, Counsel shall review Code of Civil Procedure sections 2017.010, 2023.010(f),

		2030.010 <i>et seq.</i>, and 2033.010 <i>et seq.</i> Counsel shall allot sufficient time to these discussion(s) to enable counsel to “compare their views, consult, and deliberate,” and shall make good faith efforts to resolve any disputes. Following these discussions, if any issues remain outstanding for court intervention, Defendant Lopez may file a renewed motion setting forth the discovery response(s) remaining at issue, and including a detailed description of the proposals the parties made to resolve the dispute before Defendant Lopez filed the renewed motion. The court notes that failure to meet and confer in good faith and in compliance with this court’s order may result in monetary sanctions against the parties and/or their counsel of record. Defendant is ordered to give notice. <u>Motion to Compel Deposition</u> Plaintiff Susan Alcantar moves to compel the deposition of Defendant JPMorgan Chase Bank, N.A. For the following reasons, the motion is DENIED in part and GRANTED in part. At a mutually agreeable time no later than July 17, 2026 at 10:00 a.m., Defendant JPMorgan Chase Bank, N.A., SHALL produce the person(s) most knowledgeable as to deposition topic nos. 13, 14, 15, 19, 20, 21, 22, 23, 29, 30, 31, 32, and 33. <u>Standard on Motion to Compel Deposition</u> Code of Civil Procedure Section 2025.450(a) provides that: “If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450(a).) “If a deponent fails . . . to produce any document or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling . . . production.” (Code Civ. Proc., § 2025.480(a).) The motion must be accompanied by a meet and confer declaration (see Code Civ. Proc., §§ 2016.040, 2025.450(b)(2)) and set forth good cause justifying the production of documents described in the deposition notice (Code Civ. Proc., § 2025.450(b)(1)). In order to show “good cause,” the burden is on the moving party to make a “fact specific showing of relevance.” (<i>Glenfed Develop. Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1117.) Arguments made in the moving papers or in a separate statement are insufficient to satisfy this requirement; good cause must be shown by way of admissible evidence, such as by declaration. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 224.)
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		Once good cause is shown by the moving party, the burden then shifts to the responding party to justify any objections made to requests for production. (See <i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) <u>Categories of Testimony</u> As an initial matter, this court assumes Plaintiff does not intend to compel deposition as to deposition topic nos. 1, 16, 17, 18, 34, and 35, as Plaintiff's Separate Statement does not set forth these topics or address the objections thereto. Defendant JPMC fails to justify the objections asserted in response to deposition topic nos. 13, 14, 15, 19, 20, 21, 22, 23, 29, 30, 31, 32, and 33. Although Defendant argues that it has no relevant non-privileged and non-protected knowledge because Plaintiff was driving her personal vehicle at the time of the incident and did not inform Defendant JPMC of the incident until after this litigation commenced, Defendant submits no evidence to support these contentions. Arguments raised in briefs constitute the unsworn statements or testimony of counsel, which do not constitute evidence within the meaning of the Evidence Code. (<i>In re Zeth S.</i> (2003) 31 Cal.4th 396, 413, fn. 11; see <i>In re Marriage of Pasco</i> (2019) 42 Cal.App.5th 585, 592; see <i>DiCola v. White Brothers Performance Products, Inc.</i> (2008) 158 Cal.App.4th 666, 683.) <u>Requested Documents</u> Plaintiff does not show good cause justifying the production of documents described in the deposition notice, and good cause is not apparent on the face of the Requests for Production. <u>Sanctions</u> Code of Civil Procedure section 2025.450(g) provides for the recovery of monetary sanction in connection with a motion to compel deposition, but Plaintiff seeks no monetary sanction here. Plaintiff to give notice to all parties.
9	Sanchez v. Yagar	Defendant Faye Araceli Yagar motions for order compelling Plaintiff Francisca J. Tellez Sanchez to Form Interrogatories (Set One), Special Interrogatories (Set One), and RFPs (Set One) are GRANTED. A party may move for an order compelling responses to discovery at any time "[i]f a party to whom [discovery requests] are directed fails to serve a timely response." (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [RFPs].) By failing to serve timely responses, the responding party waives "any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290(a).) Similarly, the responding party waives "any objection to the [inspection] demand, including one based on privilege or on the protection for work product

		under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300(a).) Here, it is undisputed that Plaintiff did not timely respond to the discovery at issue, and Plaintiff does not oppose the requested relief. For these reasons, the court will GRANT the motions and order Plaintiff to provided verified, code-compliant responses without objection to the Form Interrogatories (Set One), Special Interrogatories (Set One), and RFPs (Set One). The court finds the circumstances make the imposition of requested monetary sanctions unjust and, on that basis, will DENY Defendant’s request for sanctions against Plaintiff Francisca J. Tellez Sanchez. (See Code Civ. Proc., §§ 2023.010, 2030.290(c), 2031.300(c).) Defendant to give notice.
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